

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: May 18, 2026

Time: 2:00 PM

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

Appearances may be IN PERSON or through ZOOM. If appearing by ZOOM, go to <https://www.occourts.org/media-relations/civil.html> and click on the yellow box that reads: "CLICK HERE TO APPEAR FOR THE ONLINE CHECK-IN/ZOOM PILOT PROGRAM." Call the department with any questions.

COURT REPORTERS: Official Court Reporters (i.e. Court Reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of Court Reporters.

PUBLIC ACCESS: The public may attend the ZOOM session by telephone. Call the department for a call-in number.

#		
1	Gutierrez v. Guevara	Before the Court is a motion to strike or tax costs filed by defendant Evelyn Vasquez Guevara (Defendant). For the reasons set forth below, the motion is GRANTED and costs reduced in the amount of \$22,837.75, but otherwise DENIED. The total amount of costs awarded to Plaintiff is \$40,852.95. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (<i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29; <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 773-74.) If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (<i>Foothill-De Anza Comm. College Dist., supra</i>, 158 Cal.App.4th at 29.) As an initial matter, the amended costs memorandum filed on May 5, 2026 (ROA 271) is untimely and thus, stricken. (Cal. Rules of Court, rule 3.1700(a)(1); Code of Civ. Proc. § 436.) The Court only considers the original costs memorandum filed on February 20, 2026 (ROA 206) in ruling on this motion.

Item No. 4: Costs are expressly allowed for the “[t]aking, video recording, and transcribing necessary depositions . . .” (Code of Civ. Proc. § 1033.5, subd. (a)(3).) Defendant clarifies in the reply that she is only challenging the videotaping costs for Dr. Kim (\$563.75), Ms. Cruz (\$563) and Ms. Manalo (\$557.50) and the deposition costs newly submitted with the Opposition for Dr. Kim (\$4,256.20 plus \$609), Dr. Dennis (\$2,095.40), Dr. Nudleman (\$1,972.35).

Contrary to Defendant’s contention, the original costs memorandum and supporting declaration includes all 12 itemized costs for *transcribing* and *videotaping* depositions, including for Drs. Kim, Dennis and Nudleman. (ROA 260, 262.) Plaintiff contends the original costs memorandum, however, miscategorized the “taking” of depositions for Kim, Pakk, Salhom, Cruz and Shapiro as “ordinary witness fees” in Item No. 8a instead of listing these costs under Item No. 4. The supporting declaration filed with the costs memorandum supports Plaintiff’s contention. Defendant had notice of these charges, and in fact, Defendant challenged these costs in the motion as not being supported by proper documentation. (Motion, p. 11.) With the opposition, Plaintiff submitted invoices for the costs of taking the depositions for these witnesses. (Bazerkanian Decl., Exs. A-2, A-3, A-4, A-6, A-8.) Defendant failed to challenge these costs as unreasonable or unnecessary in the reply.

With regard to the videotaping of the depositions of Dr. Kim, Ms. Cruz and Ms. Manalo, Defendant has shown these costs were not necessary for the conduct of litigation. (Code of Civ. Proc. § 1033.5, subd. (c)(2); *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57; see e.g., *Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557, 1560 [costs of videotaping depositions awarded where necessary to prepare strategy for cross-examination].)

Thus, the motion is GRANTED for this item in the amount of \$1,684.25.

Item No. 8b: Plaintiff withdraws this itemized cost. Thus, the motion is GRANTED for this item in the amount of \$14,950.

Item No. 13: Expenses for models, enlargements, photocopies and electronic presentation of exhibits that are “reasonably helpful to the trier of fact” are recoverable costs. (Code of Civ. Proc. § 1033.5, subd. (a)(13); *Christler v. Express Messenger Systems, Inc.* (2009) 171 Cal.App.4th 72, 90-91; *Ripley v. Pappadopoulos* (1994) 23 Cal.App.4th 1616, 1623.) In general, costs for exhibits not actually used at trial are not recoverable. (*Ladas v. California State Auto. Ass’n* (1993) 19 Cal.App.4th 761, 774; *Great Western Bank v. Converse Consultants, Inc.* (1997) 58 Cal.App.4th 609, 615.) Plaintiff seeks \$5,269.93 in costs, of which Defendant challenges \$2,643.75. Defendant has shown, and Plaintiff does not dispute, the exhibit enlargement and photocopies were not used at trial, and the photocopies are not supported by invoices or receipts. The motion is thus GRANTED for this item in the amount of \$2,643.75.

		<u>Item No. 14:</u> Fees for the electronic filing or service of documents through an electronic filing provider are recoverable if a court requires or orders electronic filing or service of documents. (Code of Civ. Proc. § 1033.5, subd. (a)(14).) Defendant disputes \$116.37 of the \$532.12 sought, as not supported by the receipts. However, Defendant did not include the amounts charged for court technology access fee (\$2.25) and convenience fees (\$0.62) for each e-filing, which costs the Court finds reasonable. The motion is therefore DENIED for this item. <u>Item No. 15:</u> Plaintiff withdraws this itemized cost. The motion is thus GRANTED for this item in the amount of \$3,559.75. In sum, costs shall be reduced by \$22,837.75 and the total amount awarded is \$40,852.95. Defendant shall provide notice of this ruling.
2	Azadzoi vs. Chattha	Specially appearing defendant Asif Chattha's ("Defendant" for this ruling) unopposed Motion to Quash ("Motion") service of summons is GRANTED. A defendant may move to quash summons pursuant to Civ. Proc. Code § 418.10(a)(1). "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process "the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." " (<i>Summers v. McClanahan</i> (2006) 140 Cal. App. 4th 403, 413; <i>Dill v. Berquist Constr. Co.</i> (1994) 24 Cal. App. 4th 1426, 1439–40.) Defendant has challenged the court's jurisdiction on the ground of improper service of process by producing declarations supporting that neither Defendant nor a competent member of his household were personally served the summons and complaint at Defendant's dwelling house or usual place of abode as stated in the proof of service. Pro per plaintiffs Barnosh Azadzoi and Megan Azadzoi ("Plaintiffs") did not oppose the Motion and therefore have not met their burden of showing proper service or the existence of the court's jurisdiction. The Motion is granted. Case Management Conference is CONTINUED to September 4, 2026, at 2:00 p.m. Defendant to give notice.
3	Young v. Garden Grove HY LLC	The motion of defendants Garden Grove HY LLC, Ally Bank, and Great American Insurance Company (collectively, Defendants) to compel arbitration of the claims of plaintiff Sammie Young II (Plaintiff) is GRANTED. On a motion to compel arbitration, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th

951, 972 (California Arbitration Act); see also *Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board* (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 (Federal Arbitration Act).)

The arbitration provision is contained in the Retail Installment Sale Contract (Contract) between Plaintiff and defendant Garden Grove HY LLC (Dealer). (See Sumpter Decl., Ex. A, p. 5.) The arbitration provision is broad form agreement that clearly covers the claims at issue as it covers “any claim or dispute” arising out of the purchase of the subject vehicle. Plaintiff does not dispute he signed the Contract or that his claims fall within the scope of the arbitration provision.

Plaintiff also does not dispute that defendant Ally Bank, as assignee of the Contract, may enforce the arbitration provision. Plaintiff does, however, dispute that non-signatory defendant Great American Insurance Company (Surety) may enforce the arbitration provision.

The Court finds Surety may invoke the arbitration clause in this matter. The cause of action asserted against Surety is “intimately founded in and intertwined” with the underlying Contract such that Surety may enforce the arbitration clause under a theory of equitable estoppel. (*Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 714-715; *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th at 209, 219.) Plaintiff’s reliance on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 is misplaced as the California Supreme Court in that matter found the plaintiffs’ claims against the non-signatory manufacturer were separate and apart from and were not intertwined with the contract containing the arbitration provision. (See *Id.*, p. 1130-1131.) By contrast, here, Plaintiff’s claims against Surety are dependent upon and inextricably intertwined with the Contract as Plaintiff alleges Surety is liable to Plaintiff on the bond based on Dealer’s misrepresentation of the terms of the Contract to Plaintiff.

Accordingly, Defendants met their burden of establishing a valid arbitration agreement between the parties that covers the instant dispute. The burden thus shifted to Plaintiff to prove any defense to enforceability.

Plaintiff contends the arbitration provision is unenforceable because it is unconscionable. To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Mercurio v. Superior Court* (2002) 96 Cal.App.4th 167, 174-75.)

In this case, the adhesive nature of the contract provides some degree of procedural unconscionability. However, for the arbitration agreement to be unenforceable, Plaintiff must also show the agreement is substantively unconscionable. (*Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1406.)

“Substantive unconscionability focuses on the one-sidedness or overly harsh effect of the contract term or clause.” (*Harper*, 113

Cal.App.4th at 1406- 1407.) Plaintiff contends the arbitration agreement is substantively unconscionable because AAA does not provide for adequate discovery, Plaintiff is not entitled to subpoena third parties in AAA, and AAA's consumer arbitration rules do not provide for adequate evidentiary safeguards at the arbitration hearings. Initially, pursuant to the terms of the arbitration clause, Plaintiff may choose National Arbitration and Mediation instead of AAA or the parties may agree to a different organization. Plaintiff makes no argument suggesting discovery rules for National Arbitration and Mediation would be inadequate and he proposes no alternative arbitration organizations.

In terms of discovery, the arbitration agreement itself does not contain an express discovery provision. However, the AAA Consumer Arbitration Rules, which both parties discuss and which are included in Plaintiff's Compendium of Exhibits, state the arbitrator "shall manage any necessary exchange of information among the parties, including depositions, interrogatories, document production, or by other means, with a view to achieving an efficient and economical resolution of the dispute while, at the same time, promoting equality of treatment and safeguarding each party's opportunity to fairly present its claims and defenses." (Plaintiff's COE, Ex. 2, Rule 20(a).) The AAA rules also state "on application of a party or on the arbitrator's own initiative," the arbitrator may "require such other forms of information exchange as the arbitrator deems necessary." (Plaintiff's COE, Ex. 2, Rule 20(c).)

These discovery provisions are "sufficient to adequately arbitrate [Plaintiff's] claim, including access to essential documents and witnesses, as determined by the arbitrator" and is thus not substantively unconscionable. (See *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 106; see also, *Lane v. Francis Capital Mgmt.* (2014) 224 Cal.App.4th 676, 693 (finding "the lack of an express provision for discovery did not render the arbitration agreement substantively unconscionable" where the AAA rules were expressly referenced).)

Plaintiff's cited cases, *Davis v. Kozak* (2020) 53 Cal.App.5th 897 and *Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, are distinguishable. Here, the arbitration provision contains no express limits on discovery, and as stated, the AAA rules grant the arbitrator discretion to manage exchange of information "with a view to achieving an efficient and economical resolution of the dispute while, at the same time, promoting equality of treatment and safeguarding each party's opportunity to fairly present its claims and defenses." (Plaintiff's COE, Ex. 2, Rule 20(a).)

In terms of subpoenas, Rule 32(d) of the AAA Consumer Rules provides that the "[a]rbitrator or other person authorized by law to subpoena witnesses or documents may do so at the request of any party." (Plaintiff's COE, Ex. 2, Rule 32(d).) Plaintiff has not shown that the arbitrator would deny any request to subpoena witnesses in this matter.

		Plaintiff's argument that AAA's rules do not provide for adequate evidentiary safeguards at arbitration hearings also fails. AAA's rules provide that the arbitrator shall "determine what evidence will be admitted, what evidence is relevant, and what evidence is material to the case," and that "[f]ollowing the legal rules of evidence shall not be necessary." (Plaintiff's COE, Ex. 2, Rule 32.) As Defendants argue, such rules comply with the Code of Civil Procedure. (See Code Civ. Proc., § 1282.2(c), (d).) Plaintiff failed to show how these provisions render the arbitration agreement unconscionable. Accordingly, Plaintiff failed to meet his burden of demonstrating substantive unconscionability. The motion is thus GRANTED. The parties are ordered to arbitration pursuant to the terms and conditions of the arbitration clause contained in the Contract. This entire matter is STAYED pending completion of arbitration. A Status Conference re: Status of Arbitration is scheduled for September 4, 2026, at 2:00 p.m. Defendants shall give notice.
4	Objective Standard Institute v. Barney et. al.	Before the Court is a motion to disqualify counsel filed by plaintiff/cross-defendant Objective Standard Institute (Plaintiff or OSI). Specifically, OSI seeks an order 1) disqualifying the Law Offices of Day, Day & Brown (DDB) from continuing to represent defendants and/or cross-complainants Carl B. Barney (Barney), Prometheus Foundation (Prometheus), Center for Excellence in Higher Education (CEHE)(collectively, Defendants); and 2) requiring Defendants and DDB to turnover to OSI's counsel and thereafter destroying all evidence of privilege communications and refrain from further dissemination and use of privileged communications. For the reasons set forth below, the motion is GRANTED. As an initial matter, the Court recognizes Defendants filed substitutions of attorney replacing DDB with new counsel. OSI asks the Court to issue an order for disqualification to ensure DDB does not serve as counsel at a later date, based on DDB's reservation of rights to do so. The Court finds the motion is not moot. The Court also notes that OSI has withdrawn its request for monetary sanctions. The court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (Code Civ. Proc. § 128, subd.(a)(5).) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex Asbestos Litig.</i> (1991) 232 Cal. App. 3d 572, 585.) Deciding a motion to disqualify requires the court to weigh the following variables, including: 1) the party's right to counsel of choice; 2) the attorney's interest in representing a client; 3) the financial burden on a client of changing counsel; 4) any tactical abuse underlying a disqualification motion; and 5) the principle that

the fair resolution of disputes requires vigorous representation of parties by independent counsel. (*Mills Land & Water Co. v. Golden West Refining Co.* (1986) 186 Cal.App.3d 116, 126.) "The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar." (*People ex rel. Dep't of Corps. v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145-1146.)

An attorney's misuse of inadvertently disclosed privileged or confidential information may warrant disqualification. (See, e.g., *Rico v. Mitsubishi Motors Corp.* (2007) 42 Cal.4th 807, 819-820; *McDermont Will & Emery LLP v. Superior Court* (2017) 10 Cal.App.5th 1083, 1092; *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829, 832.) The so-called "*State Fund* rule" governs an attorney's duties upon receiving materials that appear to be privileged and/or confidential:

When a lawyer who receives materials that obviously appear to be subject to an attorney-client privilege or otherwise clearly appear to be confidential and privileged and where it is reasonably apparent that the materials were provided or made available through inadvertence, the lawyer receiving such materials should refrain from examining the materials any more than is essential to ascertain if the materials are privileged, and shall immediately notify the sender that he or she possesses material that appears to be privileged.

(*State Compensation Ins. Fund v. WPS, Inc.* (1999) 70 Cal.App.4th 644, 656-657 ("*State Fund*"); see also Cal. Rules Prof. Conduct, rule 4.4 [codifying the *State Fund* rule].) "The *State Fund* rule is an objective standard. In applying the rule, courts must consider whether reasonably competent counsel, knowing the circumstances of the litigation, would have concluded the materials were privileged, how much review was reasonably necessary to draw that conclusion, and when counsel's examination should have ended. [Citation.]" (*Rico v. Mitsubishi Motors, supra*, 42 Cal.4th at p. 818.)

The evidence shows two board members of OSI (the Biddles) obtained preliminary advice from counsel prior to the November 25, 2025 board meeting, the attorney-client privileged communications were disclosed at the board meeting at which Annie Vinther Sanz (Sanz) was present, Sanz subsequently disclosed those privileged communications to DDB, and DDB used the privileged information in this litigation. (Biddle Decl. ¶¶ 4-8, Ex. A; Haas Decl. ¶¶ 6-18; Dykstra Decl. ¶¶ 3-11.) The Court finds the Sanz declaration filed in federal court and in this Court contains attorney-client privileged communications.

The information was obviously privileged. Sanz declarations reference the OSI board agenda which included the subtopic "Legal Advice" alongside subtopics "Conflict with Carl," and "Funds in Reserve." Sanz declarations also reference OSI's retention of legal counsel for purposes of suing Defendants. These facts that would put any reasonably competent attorney, knowing the circumstances of this litigation, on notice that the information is privileged. This is

particularly true since DDB admits having represented Prometheus from the time of the board meeting in November 2025 through the filing of the Sanz declarations.

Defendants argue that Sanz was not only a board member of OSI, but also an officer of defendant Prometheus, such that DDB as counsel for Prometheus was entitled to discuss with Sanz any matter directly affecting the client. There is no question, however, that Sanz attended the November 25, 2025 board meeting in her capacity as a member of OSI's board and acquired the privileged information in that capacity – not as Prometheus' officer. As such, she had a duty to keep this information confidential and not disclose this information to Defendants and DDB to use in litigation against OSI. (*National Football League Properties, Inc. v. Superior Court* (1998) 65 Cal.App.4th 100, 109-110; *Guardian Storage Centers, LLC v. Simpson* (2026) 119 Cal.App.5th 509, 527.)

Defendants' argument that OSI waived the privilege by Biddle knowingly disclosing the information to Sanz at the board meeting, knowing that she is an officer of an adversary Prometheus is equally unpersuasive. "The power to waive the privilege rests with the Board, and the actions of an individual Board member alone cannot waive the privilege." (*Galli v. Pittsburg Unified School Dist.* (N.D. Cal. 2010) 2010 WL 4315768 *4.) Moreover, the evidence shows board members discussed potential litigation against Barney and CEHE regarding the OSI Reserve Funds – not potential claims against Prometheus.

Nor does the Court buy Defendants' argument OSI waived the privilege by filing written evidentiary objections in federal court. The evidentiary objections were based on the attorney-client privilege and work product, thereby showing non-consent. By its very nature, they cannot be construed as a waiver. (See Evid. Code § 912, subd. (a).) In fact, OSI has asserted the privilege throughout this litigation. The chronology of events show OSI acted consistently in seeking to protect the privilege.

In sum, the Court finds disqualification is warranted under the *State Fund* rule. All of the other factors, including Defendants' choice of counsel, DDB's interest in representing its client, financial burden on Defendants in changing counsel – are moot now that DDB no longer represents Defendants.

The Court therefore GRANTS the motion to disqualify DDB from this action. The Court further orders Defendants 1) to deliver all documents in their possession, custody and control (including documents held by Defendants' current and prior counsel in this litigation), and thereafter destroy, all notes, recordings, or communications evidencing attorney-client privileged information obtained by Sanz in her capacity as a board member of OSI from November 25, 2025 to January 5, 2026; and 2) to refrain from disseminating or using such privileged information for any reason.

Counsel for Plaintiff shall give notice of this ruling.

5	Arguelles v. Albertson's LLC	O/C
6	Jones v. Jaime	The motion to strike filed by defendant Maria Jaime (Defendant) directed to the complaint of plaintiff Lydell Jones (Plaintiff) is GRANTED with 20 days leave to amend. The allegations in the complaint fail to plead circumstances of oppression, fraud, or malice. (See Civ. Code, § 3294(a), (c).) The allegation Defendant fled the scene, without more, is insufficient to demonstrate malice, oppression, or fraud as required to support entitlement to punitive damages. For instance, there is no allegation Defendant knew Plaintiff was injured. The Complaint also does not plead facts showing Defendant intended to harm Plaintiff. The Complaint also contains no allegations that Defendant engaged in any fraudulent conduct intended to cause injury to Plaintiff. The allegations as pled fall short of demonstrating despicable conduct carried on with a conscious disregard for Plaintiff's rights. (Civ. Code, § 3294(c); <i>Pac. Gas & Elec. Co. v. Superior Court</i> (2018) 24 Cal.App.5th 1150, 1159.) Accordingly, the motion is GRANTED with 20 days leave to amend. Defendant shall give notice of this ruling.
7	Kwok v. Genera Corp.	The motion for new trial is DENIED as untimely. The Court determined moving parties' previous notice of intention to move for new trial as to the original judgment was untimely. The amended judgment merely added costs and interest and did not affect the substantial rights of the parties. Case law is clear that the mere addition of attorney fees, costs and interest does not restart post-trial timelines as to the matters determined in the original judgment. <i>See Torres v. City of San Diego</i> (2007) 154 Cal.App.4th 214, 222 ("It is well settled . . . that '[w]here the judgment is modified merely to add costs, attorney fees and interest, the original judgment is not substantially changed and the time to appeal it is therefore not affected.'") Moving parties cite <i>Seeley v. Seymour</i> (1987) 190 Cal.App.3d 844, 854, for the proposition that the entry of an amended judgment restarts the time for the filing of a motion for new trial. But <i>Seeley</i> does not specify the nature of the amended judgment involved in that case. Given that the amended judgment in <i>Seeley</i> was entered just one day after the original judgment, it would be illogical to assume it merely added costs, interest, and/or attorney fees. Moving parties also cite <i>Dickens v. Lee</i> (1001) 230 Cal.App.3d 985, 987; but in <i>Dickens</i>, the original award did not include costs, which were first added in the later judgment. The Court of Appeal noted that as to these costs, "the judgment is appealable <i>on this point.</i>" (Emphasis added.) Applied here, <i>Dickens</i> simply stands for the proposition that the time for appeal of the added costs runs from the

		new judgment. It does not suggest that an amended judgment adding costs restarts the deadlines for the entire judgment. <i>Sanchez v. Strickland</i> (2011) 200 Cal.App.4th 758, 767, also cited, is inapposite because the change in judgment reduced the damages awarded, which affected the substantial rights of the parties. Finally, moving parties argue that because neither judgment addressed the roles of the cross-defendants as trustees, the time for bringing a new trial motion as the original judgment's substantive issues never commenced. The Court previously determined that the time for bringing a new trial motion as to the original judgment had both commenced and run before the first notice of intention to move for new trial had been filed. Arguing that the original judgment was never final constitutes a procedurally improper motion for reconsideration of the Court's previous ruling. Genera to give notice.
8	Hashimi v. American Honda Motor Co. Inc.	Before the Court is the Motion for Judgment on the Pleadings, filed on 2/19/26 by Defendant American Honda Motor Co., Inc. ("Honda"), as to the Fifth Cause of Action asserted in the Complaint filed by Plaintiff Mer Hashimi ("Plaintiff") on 3/13/25. Plaintiff filed a "Non-Opposition" on 5/5/26. The Motion is GRANTED. For the Fifth Cause of Action, the Complaint makes only vague assertions about alleged defects in this vehicle. Generic claims of defects, without more, do not suffice to state the claim, as "[t]he very existence of a warranty presupposes that some defects may occur." (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Plaintiff also has not alleged where and how he acquired the vehicle, or the circumstances surrounding the purchase. Greater specificity is required to state the claim. The Motion is therefore GRANTED as to the Fifth Cause of Action in the Complaint. As Plaintiff filed a "Non-Opposition," and thus failed to show that he can amend to cure these defects, this ruling is without leave to amend. Honda is to give notice of this ruling.
9	Yousefian v. General Motors, LLC	Before the Court is a motion by General Motors, LLC (GM) for an order striking, or alternatively, taxing the memorandum of costs filed by plaintiff Arlen Yousefian. The motion to strike is DENIED and the motion to tax is GRANTED, in part, as set forth herein. GM first argues the entire memorandum of costs is untimely because it was filed 204 days after plaintiff accepted its Section 998 offer. Rule 3.1700 requires the memorandum of costs be filed 15 days after service of notice of entry of judgment or 180 days after entry of judgment. Neither occurred in this case. Accordingly, the motion to strike is DENIED. GM next argues that several specific items should be taxed.

The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c).)

In addition to the foregoing authority regarding costs, the Song Beverly Act also provides, "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).) Indeed, "[i]n a claim under the Song-Beverly Act, a prevailing plaintiff is entitled to recover costs and expenses (Civ. Code, § 1794, subd. (d)); for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5." (Smalley v. Subaru of America, Inc. (2022) 87 Cal.App.5th 450, 457; see Warren v. Kia Motors of America, Inc. (2018) 30 Cal.App.5th 24, 42-43.)

Filing & Motion Fees: \$22.70

This is the filing fee for the Reply on the Fees motion. When Attorney Hovanes Margarian signed the Memorandum of Costs (Summary) on 11/25/25, he stated that "to the best of my knowledge and belief," the costs "were necessarily incurred." The actual truth was that these costs had not yet been incurred. Because the memorandum of costs does not support the cost request, motion is GRANTED as to the \$22.70 filing fee.

Jury Fees: \$167.07

GM seeks to tax this charge because this matter did not go to trial. However, this is the charge plaintiff incurred to preserve his right to a jury trial. Such costs are recoverable. (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal. App. 4th 571, 576) Accordingly, the motion is DENIED as to the jury fees.

Service of Process: \$102.96

GM seeks to tax two charges for \$51.48 each for service of process on "Rebecca Vang." (Worksheet, p. 2, lines 5.a-b.) GM argues plaintiff has not provided any information regarding who this individual is, what Counsel had served on Ms. Vang, or when these costs were incurred.

		Although plaintiff was not required to submit copies of invoices along with the memo, once the defendant filed its motion to tax, plaintiff was obligated to submit evidence supporting the costs requested." <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1267) Here, there are no documents reflecting service on Rebecca Vang attached to Mr. Margarian's declaration. Accordingly, the motion is GRANTED as to the \$102.96. <u>Witness Fees (Expert Fees): \$921.50</u> GM challenges the expert fees paid to "Thomas Lepper." (Id., Worksheet, p. 3, line 8.b(1)-(3) & Attachment 8b(5).) GM argues the case did not go to trial and therefore experts were not necessary. Mr. Lepper was hired by plaintiff to evaluate the vehicle and assess the nature of the defects. (Opp. at 7:19-21) Such charges were "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).) Accordingly, the motion is DENIED as to the \$921.50. <u>Other (AppearMe Service Fee; Veritext Deposition Cancellation Fees): \$1,070.00</u> GM challenges the entire \$1,070 sought in Para. 16-Other of the memorandum of costs. The \$75 charge by the attorney who appeared at the Case Management Conference is not a proper item of recoverable costs. Attorney Fees are subject to a separate motion. The two invoices from Veritext for \$550 and \$425, for a total of \$975, are properly recoverable costs. Plaintiff has not sought to justify the additional \$20. Accordingly, the motion to tax is GRANTED as to \$95. In summary, the \$3,111.47 in costs requested by plaintiff is taxed in the amount of \$200.23. This means that plaintiff is awarded costs in the total amount of \$2,911.24. Order to show cause re dismissal on settled case CONTINUED to September 4, 2026, at 2:00 p.m. Plaintiff is ordered to give notice of this ruling.
10	Olivera v. Beach, et. al.	Before the Court is a Motion for Summary Judgment by Defendants Jon Beach and Theresa Beach as to the complaint filed by Plaintiff John Olivera. For the reasons set forth herein, the motion is GRANTED. <u>Request for Judicial Notice:</u> Defendants' request for judicial notice of the plaintiff's worker's compensation file is GRANTED. (Evid. Code §452(d).)

Plaintiff's Request to Continue Hearing – CCP §437c(h)

At pages 2-3 of the opposition, plaintiff requests a continuance under Code of Civil Procedure §437c(h). Counsel states a continuance is needed to complete a site inspection.

Section 437c(h) provides, "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." "To be entitled to a continuance, the party opposing the motion for summary judgment must show that its proposed discovery would have led to facts essential to justify opposition." (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326; See also, *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633, 115 Cal.Rptr.2d 780 - party seeking continuance must show facts to be obtained are essential to opposing the motion and those facts could not have been presented with the opposition papers).

Here, counsel's declaration falls well short. Plaintiff submits no evidence as to what facts would be learned through a site inspection that would relate to the issues in the pending motion.

Accordingly, the request for a continuance is DENIED.

Merits of Motion for Summary Judgment

The party moving for summary judgment "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1124.)

A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (Code Civ. Proc., § 437c(p)(2).)

Here, the Defendants had a problem with bats in the attic of their home in Fawnskin, California. Following Outback Zack's initial inspection of the Beaches' Property, the owner of Outback Zack recommended installation of a "one way valve Bat Exclusion devices." (UMF 4) All tools and supplies were provided by Outback Zack or plaintiff. None of the equipment was provided by the Defendants. (UMF 5) Outback Zack also trained and instructed Plaintiff on how to complete the job. (UMF 6)

The process of installing the device required plaintiff to go on the roof, which plaintiff knew was both high and steep. (UMF 8; Opp. at 16:13 – "plaintiff could see that the roof was steep.") In fact,

plaintiff had slipped on the roof on the first day of the project and requested that Outback Zack provide an additional technician for support. (UMF 7, 9) Outback Zack did not provide an additional technician but instead recommended plaintiff use a mechanical arm boom or a "two-ladder technique" (UMF 9) Plaintiff opted for the latter approach without any input from the Defendants. (UMF 14) Plaintiff fell from the roof while attempting to execute the two-ladder technique.

The *Privette* doctrine bars employees of independent contractors from recovering damages from the hirer of the contractor for workplace injuries. (*SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590, 594; *Privette v. Superior Court* (1993) 5 Cal.4th 689.) The rationale is twofold. First, because workers' compensation insurance generally provides the exclusive remedy for employees who are injured on the job, allowing the employee to recover from the contractor's hirer, who did not cause the injury, would unfairly subject the hirer to greater liability than that faced by the contractor who was negligent. (*Hooker v. Department of Transportation* (2002) 27 Cal.4th 198, 204.) Second, "[b]y hiring an independent contractor, the hirer *implicitly delegates* to the contractor any tort law duty it owes to the contractor's employees to ensure the safety of the specific workplace that is the subject of the contract." (*SeaBright*, at p. 594, italics added, italics omitted.)

There are two circumstances in which *Privette* does not apply, and an injured employee of an independent contractor may recover in tort from the party which hired that independent contractor. The first was set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and is based on the concept of negligent exercise of retained control. "[A] hirer of an independent contractor is not liable to an employee of the contractor merely because the hirer retained control over safety conditions at a worksite, but ... a hirer is liable to an employee of a contractor insofar as a hirer's exercise of retained control *affirmatively contributed* to the employee's injuries." (*Hooker*, 27 Cal.4th at 202.)

"The [*Hooker*] court reasoned that imposing tort liability where the hirer's exercise of retained control affirmatively contributed to the injury was consistent with *Privette* and its progeny "because the liability of the hirer in such a case is *not* 'in essence "vicarious" or "derivative" in the sense that it derives from the "act or omission" of the hired contractor.' " [Citation.] To the contrary, the liability of the hirer in such a case is *direct* in a much stronger sense of that term." (*Millard v. Biosources, Inc.* (2007) 156 Cal.App.4th 1338, 1348.) (Emphasis in original.)

"Affirmative contribution occurs where a general contractor is actively involved in, or asserts control over, the manner of performance of the contracted work. [Citation.] Such an assertion of control occurs, for example, when the principal employer *directs* that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished. [Citation.] [Citation.]" (*Id.*) (Emphasis in

		original; internal quotations omitted.) Here, Defendants met their burden of demonstrating that the first exception to the <i>Privette</i> doctrine does not apply. Defendants' evidence shows that it did not retain control over any of the operative details of the work to be performed by Plaintiff. (See UMFs 4, 5, 9, 14 & 15) Further, the Defendants establish they were not involved in any way with the Plaintiff's work on the roof and were not home when the incident occurred, thus showing they did not affirmatively contribute to the plaintiff falling. In opposition, plaintiff has failed to submit any evidence establishing a question of fact exists as to whether the Defendants either retained control or affirmatively contributed to his injuries. The second <i>Privette</i> exception was discussed in <i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, and sets forth the limited circumstances in which the hirer of an independent contractor can be liable to an employee of that contractor for hazardous conditions of its property. "[A] landowner that hires an independent contractor may be liable to the contractor's employee if the following conditions are present: the landowner knew, or should have known, of a latent or concealed preexisting hazardous condition on its property, the contractor did not know and could not have reasonably discovered this hazardous condition, and the landowner failed to warn the contractor about this condition." (<i>Id.</i> at 664, fn. 3.) Plaintiff argues, without success, that the hazard was concealed and that the defendants should have issued a warning. It is undisputed the roof was steep. There is no evidence suggesting any aspect of the roof was concealed from view. In fact, on the first day on the job, plaintiff slipped while on the roof but caught himself before falling off the roof. (UMF 7) Plaintiff recognized the hazard of working on a roof and requested additional support from Simmons. (UMF 9) Despite not receiving additional technical support, plaintiff proceeded with the work. Based on the foregoing, the Court finds there is no triable issue of a material fact as to the issue of duty and that the Defendants are entitled to a judgment as a matter of law. The motion is therefore GRANTED. Defendants to submit a proposed judgment. Defendants are ordered to give notice of this ruling.
11	Arck Services, LLC v. Bekam	The unopposed motion to be relieved as counsel of record for plaintiff Arck Services, LLC (Plaintiff) filed by Anthony W. Burton of AWB Law, P.C. is GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The Court finds good cause to grant the relief requested on the merits. The motion is thus GRANTED. The order granting relief is effective upon filing of a proof of service of the signed order on Plaintiff.

		Moving counsel is ordered to give notice.
12	Batoon vs. The Learning Light Foundation, et al	No tentative.
13	2200 Western Avenue, LLC vs. Esports Arena, LLC	Plaintiff 2200 Western Avenue, LLC's ("Plaintiff") unopposed Motion for Entry of Judgment against defendant Esports Arena, LLC ("Defendant") is GRANTED. The parties entered into a valid and binding settlement agreement which required Defendant to make certain payments to Plaintiff. (Castellanos Decl. ¶¶ 4-5, Exs. C-E.) Defendant violated the terms of the agreement and failed to make the payments as required. Defendant, through its counsel of record, was notified of the default, but refused or failed to cure it. Defendant was also served notice of the motion and hearing and has not filed any opposition. Pursuant to Civ. Proc. Code § 664.6 and the terms of the settlement agreement between the parties, the court will grant the motion and enter judgment in the total amount of \$843,475.00, which comes from \$841,650.00 in owed payments due to the default and \$1,825 in post-default attorney fees as noted in the proposed judgment, which the court will sign. Status conference is OFF-CALENDAR. Plaintiff to give notice.
14	Tonkinson v. Barrett Daffin Frappier Treder & Weiss,	Before the Court is an unopposed Demurrer by Defendant Newrez LLC as to the Complaint filed by plaintiff Greg Tonkinson. The Demurrer is SUSTAINED with 20 days leave to amend for the reasons set forth herein. Newrez filed its demurrer on December 11, 2025. Because plaintiff failed to file any opposition to the motion, the court is entitled to consider that lack of opposition to be an admission the motion is meritorious. (See <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) The Court acknowledges that on May 5, 2026, Plaintiff attempted to file a FAC but it was rejected by Clerk for technical deficiencies. This was the last day for the plaintiff to file a First Amended Complaint (FAC) in lieu of an opposition. (Code of Civil Procedure §472) Based on the foregoing, the Demurrer is SUSTAINED and plaintiff shall have 20 days leave to amend. The Case Management Conference is CONTINUED to September 4, 2026, at 2:00 p.m. Defendant is ordered to give notice of this ruling.

15	Vctm Landlord v. Garza	Before the Court is a motion filed by defendant Steven A. Garza (Defendant or Garza) to consolidate this action with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415. For the reasons set forth below, the motion is DENIED. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048, subd. (a).) The purpose is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications. (<i>Todd-Stenberg v. Daikon Shield Claimants Trust</i> (1996) 48 Cal.App.4th 976, 978-979.) The moving party must show the issues in each case are basically the same and that economy and convenience would be served by consolidation. (<i>Ibid.</i>) Here, the motion is procedurally defective because it is noticed as seeking consolidation with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415, but Defendant concedes that case was dismissed. In the reply, Defendant clarifies he is actually seeking consolidation between this action and <i>Magherefteh v. Garza</i>, OCSC case no. 2024-01402923. Not only is notice insufficient, Defendant failed to provide sufficient information from that action for the Court to adequately determine whether the claims are essentially the same, e.g., Defendant failed to submit a copy of Plaintiff's third amended complaint. Lastly, there is no proof a copy of the motion was filed in that action, as required by California Rules of Court, rule 3.350(a)(1). Case management conference CONTINUED to September 4, 2026 at 2:00 p.m. Defendant shall give notice of this ruling.
16	Palacios v. Board of Regents of the University of California	Before the court is the unopposed demurrer and unopposed motion to strike filed by defendants Regents of the University of California and Julie Ann Schneider, DRM, RA (collectively, Moving Defendants) directed to the complaint of plaintiff Andres Quezada Palacios (Plaintiff). The demurrer is SUSTAINED with 20 days leave to amend and the motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First, Second, and Third Causes of Action:</u> Moving Defendants contend Plaintiff lacks standing to assert the causes of action for medical malpractice, gross negligence, and elder abuse. (<i>Peterson v. Cellco Partnership</i> (2008) 164 Cal.App.4th 1583, 1589 ["Because standing goes to the existence of a cause of action, lack of standing may be raised by demurrer."].) Plaintiff pursues these causes of action in his individual capacity, but the complaint speaks only of medical care provided by defendants to Andres Herrera Palacios, not to Plaintiff. Further, as Moving Defendants argue, the complaint

alleges only a duty owed to the patient, Plaintiff's father Andres Herrera Palacios, not to Plaintiff. The demurrer on this ground is well-taken.

Moving Defendants also contend the gross negligence cause of action is duplicative of the medical malpractice claim and is thus subject to demurrer. (See *Holcomb v. Wells Fargo Bank, N.A.* (2007) 155 Cal.App.4th 490, 501.) Moving Defendants also contend Plaintiff fails to plead with the required specificity acts of recklessness, fraud, oppression, or malice sufficient to plead a claim for elder abuse. (See *Carter v. Prime Healthcare Paradise Valley, LLC* (2011) 198 Cal.App.4th 396, 405.)

The demurrer appears well-taken. Moreover, Plaintiff did not oppose the Demurrer and has therefore implicitly conceded the Demurrer's merit. (See, e.g., *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; see also, *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer to the first, second, and third causes of action is **SUSTAINED with 20 days leave to amend.**

Fourth Cause of Action: "Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply." (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Moving Defendants are correct that the complaint fails to allege facts showing Moving Defendants owed a duty to Plaintiff as the complaint alleges only medical care rendered to Plaintiff's father. To the extent the claim is based on allegations that Plaintiff was present during the care and treatment of his father and experienced emotional distress due to witnessing said treatment, these allegations appear insufficient to support a claim for negligent infliction of emotional distress as Plaintiff does not allege a specific injury-causing event. (See *Bird v. Saenz* (2002) 28 Cal.4th 910, 917.)

Plaintiff did not oppose the Demurrer and has therefore implicitly conceded the Demurrer's merit. (See, e.g., *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; see also, *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer to the fourth cause of action is **SUSTAINED with 20 days leave to amend.**

Fifth Cause of Action: Moving Defendants are correct that the complaint fails to allege the elements of the fraud claim with the requisite specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) Accordingly, the demurrer to the fifth cause of action is **SUSTAINED with 20 days leave to amend.**

Motion to Strike

		"In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13(a).) Section 425.13 applies to all claims "directly related to the manner in which professional services were provided." (<i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 192.) Here, Plaintiff filed no opposition and thus does not dispute that all of his claims are directly related to the manner in which Moving Defendants provided professional services. Because Plaintiff has not complied with section 425.13(a), the motion to strike is GRANTED without leave to amend. Case management conference is CONTINUED to September 4, 2026, at 2:00 p.m. Moving Defendants shall give notice.
17	Ciotti v. Public Storage Operating Co	On 4/20/26, this Court issued a modified Temporary Restraining Order ("TRO") at the request of Plaintiff Cari Ciotti ("Plaintiff"), and set a May 18, 2026 hearing date for an Order to Show Cause re Preliminary Injunction. Specially Appearing Defendant Public Storage Operating Company ("Defendant") filed an Opposition on 5/5/26. Plaintiff filed a reply brief on 5/11/26. The request for issuance of a Preliminary Injunction is DENIED, and the TRO is discharged. In determining whether to issue a preliminary injunction, the trial court considers two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (<i>Abrams v. St. John's Hospital & Health Center</i> (1994) 25 Cal.App.4th 628, 635–36.) The court's determination is guided by a mix of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other. (<i>Butt v. State of California</i> (1992) 4 Cal.4th 668, 678.) Here, Plaintiff has failed to show any reasonable probability of success on the merits. Defendant's Opposition and the supporting declaration from Jillian Gonzalez demonstrate that Defendant appears to have complied with all legal requirements for the sale. (See B&P Code §21706 [unless a declaration in opposition to the lien sale, executed under penalty of perjury, is received by the owner on or prior to the date specified in the notice of lien sale, by certified mail, the owner may, subject to statutory requirements, sell the property].) Plaintiff has failed to present evidence to refute the evidence presented by Defendant. The request for issuance of a Preliminary Injunction is therefore DENIED, and the TRO is discharged.

		Defendant's request for judicial notice (ROA 36) is granted under Ev. Code §452(d) as to the existence of the record, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The clerk is to give notice of this ruling.
18	Sycamore Canyon Plaza, LLC vs. Yu	No tentative
19		
20		
21		